IN THE NATIONAL COMPANY LAW TRIBUNAL

GUWAHATI BENCH

GUWAHATI

C.P No.02/252(3)/GB/2020

Coram: HON'BLE MR. HARI VENKATA SUBBA RAO, MEMBER(J)

HON'BLE MR PRASANTA KUMAR MOHANTY, MEMBER(T)

ATTENDENDANCE-CUM-ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 28/12/2020

Name of the Company: HRD ADVISORY SERVICES PRIVATE LIMITED

V/S

ROC, NER, Guwahati

And

Union of India

Section:Section 252(3) of the Companies Act,2013

Sl.No.	NAME(CAPITAL LETTERS)	DEGISNATION	REPRESENTATION	SIGNATURE
1.	MR. SEUJ BIKASH	Advocate	Petitioner	
2.				

ORDER

The Case is taken up through video conferencing.

The case is fixed for pronouncement of order today.

The order is pronounced in the open court.

The present matter, i.e.**C.P No.02/252(3)/GB/2020** is partly and conditionally allowed as per the order in detail recorded separately.

Sd/- **Sd/-**

(**Prasanta Kumar Mohanty)** **(HariVenkataSubbaRao)**

Member (T) **Member (J)**

Dated this the 28th December, 2020

IN THE NATIONAL COMPANY LAW TRIBUNAL

GUWAHATI BENCH

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C.P No.02/252(3)/GB/2020

In the matter of:

An application u/s 252(3) of the companies Act, 2013

In the Matter of

M/S HRD Advisory Services Pvt. Ltd., A company registered under the Companies Act,1956 having its registered office at Ajanta Path, Beltola Guwahati-781028 …Petitioner

Versus

1. **The Registrar of Companies** , Guwahati, At-5th Floor, Prithvi Planet, Behind Hanuman Mandir, G.S Road Ulubari, Guwahati 781007, Assam. …… Respondent

And

2. **The Union of India** represented by the Secretary to the Government of India, Ministry of Corporate Affairs, ShastriBhawan, Rajendra Prasad Marg, New Delhi- 110001

…..Respondent

Order delivered on:28/12/2020

Coram: **Hon'ble Mr. HariVenkataSubbaRao, Member(J)**

Hon'bleMr.Prasanta Kumar Mohanty, Member(T)

Counsel appeared through video conference

1.Mr S. Bikash, Advocate ……. Petitioner
2. Standing Counsel …… ROC

ORDER

[Per: ShriPrasanta Kumar Mohanty, Member (T)]

1. The Present appellant through this company appeal has sought for restoration of name of the company, i.e. **HRD Advisory Services Pvt. Ltd** in the Register of Companies being maintained by the Registrar of Companies, Guwahati, Assam [The ROC for short]. The names of Company struck off from the statutory Register vide impugned order of the ROC on **28.10.2019.**

2. Being aggrieved with impugned action, the appellant, as being Shareholder of the above company, has prayed for following relief(s)

   "The applicant/petitioner/appellant prays that this Hon'ble Tribunal may graciously be pleased to issue notice to the opposite party and after hearing both the parties allow the company petition directing the Registrar of Companies, NER, opposite party to restore the name of the petitioner company on the register of companies maintained by Registrar of Companies as if its name had not been struck off from the rolls of the register and/or pass such order/orders/directions as may deem just and proper in terms of section 252(3) of the Companies Act, 2013 and allow the petition.

3. The brief facts of the case raising to the present appeal are stated as under :

   3.1. M/S HRD Advisory Services Pvt. Ltd was incorporated under the Companies Act, 1956 on 4th Day of December, 2009 vide CIN No. U74140AS2009PTC009460 as a Private Company Limited by shares with the Registrar of Companies, Assam. (Herein referred to as Registrar of Companies, Guwahati).

3.2. The Registered office of company is situated at Ajanta Path, Beltola, Guwahati-28, Kamrup (M), Assam, India in the state of Assam.

3.3. The present authorized share capital of the Company is Rs 1, 00, 000/- (Rupees One lakh only) divided into 10,000 equity shares of Rs 10/-(Rupees Ten only) each.

3.4. The petitioner Company at present was managed by the following:

DIN/DPIN/PAN	Full name	Designation	Date of appointment	Whether DSC Registered	Expiry date of DSC	Surrendered DIN
02818457	AmarjitSingha	Director	04/12/2009	yes	19/08/2021	
02818463	Renu Devi Sharma	Director	04/12/2009	yes	19/08/2021	

4. The Company was incorporated to carry on the following mentioned as under:

i. To act as advisors, Technical, Industrial consultants and to provide technical know-how, preparation of Project Report, Techno-economic report, render a advise on planning development, research design, plant operation, to make feasibility studies, assist in acquisition and concern of plant and machinery, to provide procurement, construction and technical services and render such other services as are usually rendered by consultants for and in connection with the management, manufacture, production, processing of engineering goods and any other allied products required by trade and industry and to act as Management consultants and to provide services of data processing and modern management sciences.

ii. To act as management consultants and render services to the company, Government (Central or state), or any municipal or other body corporate or association or individuals with capital, credit, means or resources for the prosecution of any works, undertaking, projects or enterprises.

iii. To carry on the business of providing external workshop, seminars, consultancy services, market survey on balance score cards, business ethics, business management, corporate leadership, business processing, business development, structural and guided brain storming, TPM , TQM, matrimonial investigation, penetration inspections, variety of managerial modules, carrier solution, enhancement of ISO Certification and calibration, preventive maintenance programs, overhauling and reconditioning up graduation, cost of quality and also provide for arrangement of educational aids for software, guides,posters,display model to various individuals, firms, companies, body corporate, societies, undertaking organizations, institutions, associations, government, local authorities in India or abroad.

iv. To establish training institutes in India and elsewhere and provide training on electronic data processing, computer software & hardware, architecture, engineering, surveyors, designers, interior & exterior decorators, general and government contractors, office management, industrial management, hospitality advertisement, mass communication, insurance agents, multi-lingual education, call center executives teaching, professional management, project management, security system, foreign language translation , flight attendants,fight lieutenants, customer focus and portfolio management, fine arts, medical transcription and all kinds of educational, commercial, industrial, government, non-government training and also to encourage and assist for admission in various universities and colleges and ancillary to these also arrange for passport and visa related services, global job placement services, job

evaluation services, contract placement services in India or abroad.

5. The petitioner states that the respondent i.e the ROC, N.E Region, struck off the petitioner's name from the Register due to defaults in statutory compliances, namely failure to the Financial statements and Annual Return for the period 2016-17 and 2018-19.Consequently, the Registrar of Companies initiated proceedings under section 248 of the Companies Acct,2013, for the purpose of striking off the name of the Petitioner Company from the Register maintained by the Registrar of Companies(ROC) during the Financial year 2018-19.

6. The Petitioner has contended that the petitioner company was active since incorporation and has also been maintaining all the requisite documentation, as per the provisions of the Companies Act,2013 and had filed the required Financial statements and Annual Returns till financial year 2015-16.

7. The Petitioner submits that the Company was doing its business as per the object clause but it could not get profitable business. The repeated efforts to fetch good profit could not succeed. Since the Company was earning minimal profit for some years the Directors/share-holders were facing acute financial hardships. Also there were some health-related issues of the present Directors. Therefore, it could not file annual return and balance sheet with the ROC. Ultimately, a General Meeting held on 25/09/2019, the Petitioner Company intended to file statutory audit compliance on the website of MCA. However, meanwhile the Company is struck off from the statutory register since suomoto action for struck off the name by the ROC w.e.f 28.10.2019.

8. It is further submitted by the Petitioner that in the event of revival of the Company and restoration of the name of the Company in the Register maintained by the Opposite Party, the Petitioner Company shall file all outstanding statutory documents i.e the Financial Statements and Annual Returns for the period 2016-17 to 2018-19 along with the filing fees and the additional fee, as applicable on the date of actual filing and the certified copy of this Hon'ble Tribunal for

the restoration of the company in the register maintained by the Opposite party etc..

9. The Petitioner, Shri. Amarjit Singha, in compliance to the order dated 11.11.2020 of this Hon'ble Tribunal, has submitted an affidavit dated 17.11.2020 furnishing the copy of the bank statementfromApril,2016 to March 2020 and that no unusual cash deposit was made in the Bank account of the petitioner during the period of demonetization period.

10. The ROC, Guwahati in response to the present appeal has filed its representation affidavit dated 26.11.2020 by justifying its action and has contended that the company has filed its statutory return upto 31.03.2016 and thereafter it has not filed any return. Further the ROC states that the company in the additional affidavit dated 17/11/2020 stated that no unusual cash deposit was made by the Company during the demonetization period in the year 2016. But as per statement of account for the period, 10.11.2016 to 18.02.2017 shows receipt of Rs 3.00 lacs by the company. Further after the date of struck off i.e 28.10.2019, Rs 8 Lakhs was credited to the company's account and Rs 6, 50,000/- was withdrawn from the said account.

11. The ROC has further contended in its representation that the present appeal may be considered on its merit by this Hon'ble Tribunal subject to :

    i) Comply with all statutory provisions of the Companies Act, 2013 and file its pending statutory returns as per the law prescribed within 60 days of the restoration order being passed.

    ii) Company will not change its existing shareholders and management for a minimum period of five years from the date of order. However, further shares can be issued to existing shareholders only and to legal heir in case of their death.

iii) To pay the restoration cost payable to the Ministry of Corporate Affairs, Government of India and also so as to serve as deterrent for the companies which are negligent in compliance with the provisions of the Companies Act, 2013.

12. As per the record, the petitioner has preferred the present appeal under section 252(3) of the Companies Act as being the shareholder and Director of the deregistered company. He is eligible to file the present appeal for restoration of the company's name in the register of the ROC. Hence, the **present appeal is found to be maintainable.**

13. As per the records the name of the company,**HRD ADVISORY SERVICES PRIVATE LIMITED** got struck off from the Register of Companies and dissolved on 28.10.2019 (followed by a Gazette notification published in this respect), while the present appeal has been filed on 10.01.2020. Hence it is found to file within limitation.

14. As per the records, the name of the company, **HRD ADVISORY SERVICES PRIVATE LIMITED**is the company that has filed its statutory return up to 31.03.2016 and thereafter it has not filed any return.

15. We consider the merits of the present appeal and documents annexed therewith. The petitioner has contended in the present petition that the company has been active since its incorporation. The failure on the part of the company to file the annual returns and financial statement was unintentional and not deliberate. However due to such reason the ROC, Guwahati Struck off the name of the Company.

16. We heard the Ld. Counsel for the petitioner and considering the above stated aspects of the present appeal by perusing the material made available on record, we are of the considered view that it would be just and equitable to revive the name of the company**HRD**

ADVISORY SERVICES PRIVATE LIMITEDin the statutory register as being maintained by the Registrar of Companies, Guwahati.

17. In exercise of the powers conferred on the Tribunal under section 252(3) of the Companies Act,2013, the present appeal is **partly and conditionally allowed** with directions and subject to the compliance of following conditions:

18.1) The Registrar of Companies, Assam, the respondent herein, is directed to restore the original status of the petitioner company as if the name of the Company had not been struck off from the register of Companies with the resultant and consequential actions like changing status of petitioner company from 'struck off' to 'Active';

18.2) The petitioner company is directed to file all pending statutory documents(s) including Annual Accounts and Annual returns from the Financial Years 2016-2017 and onward , along with prescribed fees/additional fee/fine as decided by Registrar of Companies, Assam;

18.3) The Company's representatives who has filed the Company appeal on behalf of the petitioner Company, is directed to personally ensure compliance of this order;

18.4) The restoration of the Company's name is also subject to the payment of Rs 25000.00(Twenty five thousand) through online payment in www.mca.gov.in under miscellaneous fee by mentioning particulars as "Payment of cost for revival of company pursuant to orders of Hon'ble NCLT in C.P. No 02/252(3)/GB/2020;

18.5) The Petitioner is directed to deliver a certified copy of this order with Registrar of Companies, Assam within thirty days of the receipt of this order;

18.6) On such delivery and after due compliance with the above directions, the Registrar of Companies, Assam is directed to publish the order in the Official Gazette under his office name and seal;

18.7) This order is confined to the violations, which ultimately led to the impugned action of striking off the name of the Company, and it **will not come in the way of Registrar of Companies, Assam to take appropriate action(s) in accordance with law, for any other violations/Offences, if any, committed by the petitioner company** prior to or during the period the name of the Company remained struck off.

18. The **C.P No.02/252(3)/GB/2020** is disposed of with the above directions.

19. The Registry is directed to send e-mail copies of the order forthwith to all the parties.

20. Urgent certified copy of this order, if applied for, be issued upon compliance with all requisite formalities.

Sd/-	**Sd/-**
(Prasanta Kumar Mohanty)	**(Hari Venkata Subba Rao)**
Member (T)	**Member (J)**